

MEMORANDUM TO THE FILE

Subj: USE OF OTHER THAN FULL AND OPEN COMPETITION FOR AN ACQUISITION UNDER THE SIMPLIFIED ACQUISITION THRESHOLD

IDENTIFICATION OF SOURCE:

Vendor Name: [REDACTED]

Vendor City/State: [REDACTED]

Cage: [REDACTED]

Total Dollar Value: [REDACTED]

including options

1. FAR 13.106-1(b)(1)(i) states for purchases not exceeding the simplified acquisition threshold, Contracting Officers may solicit from one source if the Contracting Officer determines that the circumstances of the contract action deem only one source reasonably available (e.g., urgency, exclusive licensing agreements, brand-name or industrial mobilization).
2. As required by FAR 13.106-3(b)(3)(i), this memorandum explains the absence of competition for this acquisition, as only one source will be solicited for this requirement (or for a portion of the requirement) and the requirement is not expected to exceed the simplified acquisition threshold.

II. DESCRIPTION OF ITEM OR SERVICE:

Provide a description of the item or service required, to include its intended use, the name of the required source or brand name, and the required delivery date/period of performance.

BRAND NAME ONLY Inspector SCA Bundle: Service Contract for Keysight Technologies (Riscure) Inspector SCA with option years Yearly renewal could be either of the 2 options depending on what is needed for future testing.

POP: 4/1/2025-3/31/2026 base year

III. THE DETERMINATION FOR USE OF OTHER THAN FULL AND OPEN COMPETITION IS BASED ON THE FOLLOWING (select applicable area below to open specific form)

- ☐ A. ONLY ONE RESPONSIBLE SOURCE
- ☒ B. BRAND NAME
- ☐ C. UNUSUAL AND COMPELLING URGENCY

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A. ONLY ONE RESPONSIBLE SOURCE (select all that apply):

1. RESTRICTIVE RIGHTS. The source has established proprietary rights, limited rights in data, patent rights, copyrights or secret processes in the item or service required.

2. EXCLUSIVE LICENSING AGREEMENTS. The item or service is only available from the Original Equipment Manufacturer (OEM), or there is only one authorized distributor or technical representative for the OEM.

3. OTHER REASONS. Other reason not identified above. Provide details on mission impact if requirement is not solicited from only one source.

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B. BRAND NAME. Item required must be a brand name product, or feature of a product, particular to one manufacturer.

The

Inspector software is only made by Riscure (recently purchased by Keysight), no other company makes the required software it is proprietary to Riscure. Inspector is considered the commercial standard for this type of data analysis (Side-Channel Analysis). This software is used to baseline the commercial side-channel analysis capability. It is a cost savings to the government. To recreate this type of software would require 5 years of development using an estimated 10 person team. At a ND-4 cost of \$298k/year, the yearly cost would be about \$3,000,000 and over the 5 year development would cost at least \$15,000,000. Additionally the whole point of using this software is to understand the commercial capability and compare with other tools, so making our own would undermine the goal. If a competitor existed and was selected instead of Riscure there would be a cost and schedule impact to our program office.

New training and experience would have to be purchased and conducted. (3 months, \$100k) New government software would need to be written to integrate with existing government software. (6 months, \$300k)

C. UNUSUAL AND COMPELLING URGENCY. The supplies or services are of such unusual and compelling urgency that the Government would be seriously injured unless the agency is permitted to limit the number of sources from which it solicits, bids, or proposals. Urgent requirements are supplies or services that will result in a work stoppage, or are mission critical and the routine processing time would result in injury to the Government. The determination that the procurement for the above item/service is an urgent and compelling requirement is based on the following:

1. Date on which the requirement was first identified:
2. Required delivery date/period of performance
3. Explanation of why delivery/commencement of services by the date mentioned above is required:
4. If appropriate, include any additional pertinent information.

IV. CERTIFICATION/APPROVALS:

A. Technical / Requirements Certifications: I certify that the facts and representation under my cognizance which are included in this justification are complete and accurate to the best of my knowledge and belief.

[Redacted Signature]

(Printed) / Phone #

Date

B. Certification / Approval

Upon the basis of the above statements and information justification, I hereby approve, as the Contracting Officer, the solicitation of the proposed procurement(s) using other than full and open competition.

WESSEL.DANIELE.MARIE. [Redacted]
[Redacted]

Digitally signed by
WESSEL.DANIELE.MARIE.

Date: 2025.03.04 10:42:42
-05'00'

Contracting Officer Signature

Name (Printed) / Phone #

Date